

Here, Defendant does not dispute that Plaintiff is the prevailing party under the Song-Beverly Act, as reflected in the Acceptance of Offer to Compromise. (ROA 38.)

To recover attorney's fees, a prevailing party bears the burden of demonstrating that the fees were: (1) allowable; (2) reasonably necessary to the conduct of the litigation; and (3) reasonable in amount. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998.) The lodestar method is applicable to calculating attorney's fees under the Song-Beverly Consumer Warranty Act. (*Id.* at p. 997.) An experienced trial judge is the best judge of the value of professional services rendered in his or her court. (*Ibid.*)

The trial court's analysis "begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321, citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–1132.) "The reasonable hourly rate is that prevailing in the community for similar work." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095 [citation omitted].) "In setting a reasonable rate, the court may consider various factors beyond the applicable legal community, such as the attorney's skill and experience, the nature of the work performed, the relevant area of expertise, and the attorney's customary billing rates. (*Hoglund v. Sierra Nevada Memorial-Miners Hospital* (2024) 102 Cal.App.5th 56, 82, citing *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632–633.) As to the reasonableness of the hours, "trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation." (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1132.) "In determining a fee's reasonableness, the court may also consider whether the motion itself is reasonable, both in terms of (1) the amount of fees requested and (2) the credibility of the supporting evidence." (*Guillory v. Hill* (2019) 36 Cal.App.5th 802, 811.) The court may make a downward adjustment if the billing entries are vague, "blockbilled," or unnecessary. (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 441.)

Here, the Court determines that the hourly rates of Plaintiff's counsel of record are reasonable, and that the claimed fees are also reasonable. The Court declines to make the reductions proposed by Defendant in its opposition. (ROA 61.)

However, the Court declines to award a multiplier. The party seeking a fee enhancement bears the burden of showing why an enhancement

is appropriate. (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1138.) The Court is not persuaded that Plaintiff's requested enhancement is warranted.

In sum, the Court grants the motion and awards \$39,807 in reasonable attorneys' fees. Plaintiff is also entitled to recover \$6,826.60 in costs and expenses (which will be discussed, below, in connection with Defendant's motion to tax or strike costs).

Defendant General Motors LLC's Motion to Strike or Tax Counsel's Memorandum of Costs is granted in part and denied in part.

The Court grants the motion, in part, and taxes \$40.54 in costs. The remainder of the motion is denied.

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Code of Civil Procedure section 1033 enumerates allowable costs and costs which are not allowable, and restricts allowable costs to those reasonably necessary to the conduct of the litigation." (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.) Where items on the costs bill appear to be proper charges, "the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant[.]" (*Id.* at p. 131.) The burden is on the objecting party to show that costs are unnecessary or unreasonable. (*Litt v. Eisenhower Medical Center* (2015) 237 Cal.App.4th 1217, 1224.)

Here, Defendant seeks to tax:

- Category [1]: \$398.06 in filing fees associated with "One Legal Fees" "eFiling Charge(s)" and "Convenience Fee(s);
- Category [4]: "\$5,460.76" in "Appearance Fees" and what is presumably "Deposition costs" associated with third-party dealership depositions; and,
- Category [5] \$598.40 in process-server fees associated with third-party discovery.

The Court taxes \$40.54 in "convenience fees." CCP section 1033.5, subdivision (a)(14), generally allows for: "Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of document." However, the convenience fees are not for electronic filing. They were incurred so that Plaintiff's counsel could "pay invoices by credit card." But, the invoices expressly that that such fees can be avoided by paying "via ACH." These "convenience fees" are

		not “reasonably necessary to the conduct of the litigation,” they are—as stated in their name—“merely convenient” to Plaintiff’s preferred method of payment. (Code Civ. Proc., § 1033.5, subd. (c)(2) [“Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation”].) The remainder of the motion is denied because, based on the allegations in the Complaint, it is reasonable to expect Plaintiff to depose the individuals who worked on the repairs of the subject vehicle, and allegedly were not able to repair it. (See Compl. at ¶ 12 [“On each occasion Plaintiff delivered the Subject Vehicle for repair to Defendant or its authorized repair facility(s), the vehicle was returned to Plaintiff without properly repairing the nonconformity(s)”].) Accordingly, Plaintiff should be able to recover the (stated) costs of \$3,669.48 for “deposition costs” and \$598.40 for “service of process.” In sum, as stated above (in connection with the fee motion), Plaintiff is entitled to recover \$6,826.60 in costs and expenses. Plaintiff shall give notice of the rulings. Order to Show Cause re: Dismissal on Settled Case Continued to 8/31/26 at 9:00 a.m.
4	Chacko vs. Frith Earson 2023-01362003	Motion for Leave to Allow Independent Medical Examination Motion for Protective Order Defendants Brandon Todd Frith Earsom’s and Cunningham-Davis Corp.’s motion for leave to conduct an additional independent medical examination of Plaintiff Sheba Chacko is granted. The defendant has an unqualified right to demand one physical examination in a suit for personal injuries. (<i>Pratt v. Union Pacific R. Co.</i> (2008) 168 Cal. App. 4th 165, 181; Code Civ. Proc. § 2032.220(a).) In order to conduct a second physical examination, leave of court is required. Good cause must be shown. (Code Civ. Proc., §§ 2032.310, 2032.320.)